

Raj Kumar v. State of U.P. (demand notice; clause 6.5)

High Court of Judicature at Allahabad · Division Bench · 18 December 2019 · Writ-C No. 41986 of 2019 · **Writ disposed of; petitioner relegated to clause 6.5; coercive action stayed seven weeks.**

HEADNOTE

A writ seeking certiorari to quash an electricity demand notice on a dispute as to correctness of the bill is not entertained where clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may approach the appropriate authority; the authority is to decide by a speaking order after hearing. Coercive action is stayed for seven weeks.

FACTUAL SUMMARY

Raj Kumar approached the Allahabad High Court seeking a writ of certiorari to quash a demand notice dated 6 October 2019 issued by respondent no. 4 of the Electricity Department, claiming Rs. 3,45,270 plus other charges. He disputed the correctness of the electricity bill raised against him. Counsel for the petitioner and counsel for the Electricity Department were heard. The Court did not examine the merits of the demand or the computation of the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute; statutory remedy

HOLDING

A consumer disputing the correctness of an electricity bill must take recourse to clause 6.5 of the U.P. Electricity Supply Code, 2005; the High Court will not entertain a writ to quash the demand where that statutory remedy is available. If the consumer approaches the appropriate authority within two weeks with a certified copy of this order and the writ papers, the authority is to consider and decide the application in accordance with law within four weeks by a speaking order after hearing. Coercive action shall not be taken for seven weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy Writ to quash a demand notice on a bill-correctness dispute was not entertained because clause 6.5 of the Supply Code is the statutory remedy; the authority was directed to decide on a time-bound speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE AND BILLED AMOUNT

The Court did not examine whether the demand of Rs. 3,45,270 plus other charges was correctly raised. ¶ 1